CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E898F83B7
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN FULL

From: Jeff Dasovich <jeff.dasovich@enron.com>
Sent: Tue, 19 Jun 2001 10:36:00 -0700 (PDT)
To: Alan Comnes <alan.comnes@enron.com>, Angela Schwarz <angela.schwarz@enron.com>, Beverly Aden <beverly.aden@enron.com>, Bill Votaw <bill.votaw@enron.com>, Brenda Barreda <brenda.barreda@enron.com>, Carol Moffett <carol.moffett@enron.com>, Cathy Corbin <cathy.corbin@enron.com>, Chris H Foster <chris.foster@enron.com>, Christina Liscano <christina.liscano@enron.com>, Craig H Sutter <craig.sutter@enron.com>, Dan Leff <dan.leff@enron.com>, Debora Whitehead <debora.whitehead@enron.com> ...
Subject: PG&E Motion For Special Hearings

----- Forwarded by Jeff Dasovich/NA/Enron on 06/19/2001 05:36 PM -----

"Dan Douglass" <douglass@energyattorney.com>
06/18/2001 07:56 PM

To: "Tamara Johnson" <tjohnso8@enron.com>, "Robert Berry" <berry@apx.com>, "Denice Cazalet Purdum" <dpurdum@apx.com>, "Ed Cazalet" <ed@cazalet.com>, "Bill Ross" <billr@calpine.com>, "Bob Anderson" <Bob_Anderson@apses.com>, "Carolyn Baker" <cabaker@duke-energy.com>, "Charles Miessner" <camiessn@newwestenergy.com>, "Corby Gardiner" <jcgardin@newwestenergy.com>, "Curt Hatton" <curt.hatton@neg.pge.com>, "Curtis Kebler" <curtis_l_kebler@reliantenergy.com>, "Gary Ackerman" <foothillservices@mindspring.com>, "George Vaughn" <gavaughn@duke-energy.com>, "Greg Blue" <gtbl@dynegy.com>, "Jack Pigott" <jackp@calpine.com>, "Janie Mollon" <jsmollon@newwestenergy.com>, "Jeff Dasovich" <jeff.dasovich@enron.com>, "Joe Paul" <jmpa@dynegy.com>, "Nam Nguyen" <nam.nguyen@powersrc.com>, "Randy Hickok" <rjhickok@duke-energy.com>, "Rob Nichol" <rsnichol@newwestenergy.com>, "Roger Pelote" <roger.pelote@williams.com>, "Steve Huhman" <steve.huhman@mirant.com>, "Sue Mara" <susan_j_mara@enron.com>, "Vicki Sandler" <vicki_sandler@apses.com>
cc:
Subject: PG&E Motion For Special Hearings

PG&E has filed the attached?■&Motion for Further Proceedings Regarding Implementation of the California Department of Water Resources (DWR) Revenue Requirement Pursuant to Public Utilities Code Section 360.5 and Water Code Sections 80002.5 and 80110.■8? The Motion requests that the Commission provide an opportunity for expedited evidentiary hearings and development of a formal record on the calculation, allocation, rate design and

CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E898F83B7
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
ENRON-102180478545

implementation of DWR■,s revenue requirement and Fixed DWR Set-Aside under AB 1X and the Commission■,s decisions implementing AB 1X.? The Motion does not request any Commission proceedings to review the reasonableness or amount of DWR■,s revenue requirement.? However, without hearings and a formal record on the allocation of DWR■,s revenue requirement, PG&E contends that there is a significant risk of disagreement and litigation among interested parties and DWR over the allocation of DWR■,s revenue requirement and the revenue requirement needed by the utilities to continue serving their retail customers and paying their existing power suppliers.? The utility also makes the dramatic statement that:
?
"If it takes interested parties 24 hours a day, seven days a week locked in a room together to reach this consensus and secure the revenue stream for both DWR and the utilities, PG&E is willing to devote the time, effort and resources to do so."
?
With regard to DA suspension, PG&E states that, "Finally, in a June 12, 2001, letter to interested parties, the DWR, State Treasurer■,s Office and Department of Finance requested certain protections against customers who might seek to avoid paying DWR■,s revenue requirement by switching to alternative energy providers under direct access programs, an issue which would need to be resolved by the Commission or the Legislature prior to implementation of DWR■,s revenue requirement."? There is no other reference to DA suspension, but this makes it sound as if the issue would be inclujded in the proceeding proposed by PG&E.
?
Under the expedited schedule proposed by PG&E, the Commission would be able to issue a final decision on all DWR revenue requirement issues by July 26, 2001(although the caption for this section says July 19, the text and a schedule shows the later date).? DWR testimony would be due on June 27 and intervenor and utility testimony on July 2.
?
?
?
Dan Douglass
5959 Topanga Canyon Blvd.? Suite 244
Woodland Hills, CA 91367
Tel:?? (818) 596-2201
Fax:? (818) 346-6502
douglass@energyattorney.com
?
?
Dan Douglass
5959 Topanga Canyon Blvd.? Suite 244
Woodland Hills, CA 91367

CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E898F83B7
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN FULL

Tel:?? (818) 596-2201
Fax:? (818) 346-6502
douglass@energyattorney.com

?

- Blank Bkgrd.gif
- 6-18-01 PG&E Motion.doc

CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. E898F83B7
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
ENRON-102180478545